



POLICE DEPARTMENT

September 9, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202302857 (Incident Date: March 31, 2023) regarding Police Officer Jonathan Baptiste, Tax No. 970985 (DADS No. 2024-31317)

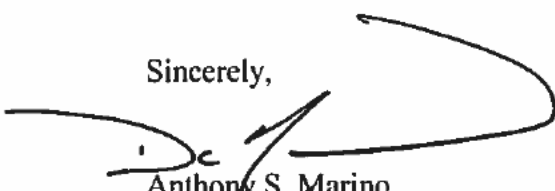
Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202302857, pertaining to Police Officer Jonathan Baptiste. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Baptiste would be detrimental to the Police Department's disciplinary process.

In this matter, the Police Commissioner agrees with CCRB's substantiated findings, however he does not agree with the recommended penalty. A review of Police Officer Baptiste's disciplinary history revealed no prior substantiated CCRB allegations, and no formal Department disciplinary history. Based on Police Officer Baptiste's lack of disciplinary history, the Police Commissioner believes Charges and Specifications is not the appropriate form of discipline in this matter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to issue Police Officer Baptiste a Schedule "B" Command Discipline with the forfeiture of ten (10) vacation days for the substantiated misconduct.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



September 12, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Jonathan Baptiste
Disciplinary Case No.: 2024-31317

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated September 9, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) that you “determined that to pursue Charges and Specifications against Police Officer Baptiste would be detrimental to the Police Department’s disciplinary process” and you intend to retain jurisdiction over this matter and “issue Police Officer Baptiste a Schedule B Command Discipline with the forfeiture of ten (10) vacation days for the substantiated misconduct.” Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

While CCRB cannot deny that you are permitted to retain jurisdiction in matters such as this one with members of service who have a lack of a disciplinary history, CCRB requests that you allow these Charges and Specifications to be served on Police Officer Baptiste and permit CCRB to prosecute this case. It is undisputed that Police Officer Baptiste damaged the complainant’s property and then subsequently while the complainant was in the holding cells at the 52nd Precinct Stationhouse, Police Officer Baptiste threatened the complainant with the use of force by pointing his Taser at the complainant’s groin. During this interaction with the complainant in the holding cells, Police Officer Baptiste did not activate his body-worn camera (BWC) device. After reviewing the evidence and circumstances of this incident, CCRB determined that Police Officer Baptiste’s actions were not within guidelines nor justified and this misconduct was substantiated by the Board. By only imposing a Command Discipline Schedule B and the forfeiture of ten (10) vacation days, Police Officer Baptiste is not being held accountable for this serious misconduct.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, CCRB disagrees with your intention of retaining jurisdiction

and imposing a Command Discipline Schedule B with the forfeiture of ten (10) vacation days for the substantiated misconduct committed by Police Officer Baptiste. CCRB requests that you allow our agency to pursue the prosecution of these Charges and Specifications against Police Officer Baptiste.

Respectfully submitted,

Andre Applewhite

p.p., Andre Applewhite, Chief Prosecutor for
Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

September 17, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

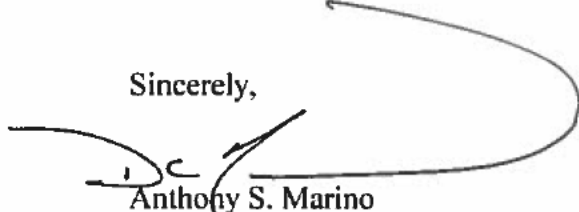
Re: CCRB Case No. 202302857 (Incident Date: March 31, 2023) regarding Police Officer Jonathan Baptiste, Tax No. 970985 (DADS No. 2024-31317)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated September 12, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Jonathan Baptiste. Nevertheless, he maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Baptiste for the reasons expressed in my September 9, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs the issuance of a Schedule "B" Command Discipline with the forfeiture of ten (10) vacation days for the substantiated misconduct.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office